

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MANUEL ZAYAS,

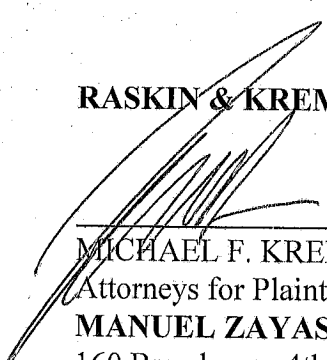
Index No.:

Plaintiff,

-against-

SUMMONS**Plaintiff designates
Bronx County as Place of
Trial**THE CITY OF NEW YORK, P.O. "JOHN DOE" #1,
and P.O. "JANE DOE" #2, (fictitious names meant to
designate police officers who committed injury to plaintiff),**The basis of venue is
location of occurrence.**Defendants.
-----X

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
April 12, 2016**RASKIN & KREMINS, L.L.P.**

MICHAEL F. KREMINS, ESQ.

Attorneys for Plaintiff

MANUEL ZAYAS160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434
File No.: N-4508

THE CITY OF NEW YORK
100 Church Street
New York, NY 10038

COMPTROLLER OF THE CITY OF NEW YORK
Municipal Building, Room 1225
1 Center Street
New York, NY 10007

JEFFREY SAMEL & PARTNERS, ESQS.
Attorneys for the Respondent
THE CITY OF NEW YORK
150 Broadway - 16th Floor
New York, NY 100388

P.O. "JOHN DOE" #1
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

P.O. "JANE DOE" #2
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MANUEL ZAYAS,

Plaintiff,

Index No.:

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, P.O. "JOHN DOE" #1,
and P.O. "JANE DOE"#2, (fictitious names meant to
designate police officers who committed injury to plaintiff),

Defendants.

-----X
SIRS/MESDAMES:

Plaintiff, **MANUEL ZAYAS**, by his attorneys, RASKIN & KREMINS, L.L.P. complaining
of Defendants, upon information and belief, respectfully allege as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff, **MANUEL ZAYAS**, was and is
a resident of the City and State of New York.
2. That at all times herein after mentioned, Defendant, **CITY OF NEW YORK**, was
and still is a municipal corporation duly organized and existing under and by virtue of the laws of
the State of New York.
3. That at all times hereinafter mentioned, Defendant, **P.O. "JOHN DOE" #1**, was
employed by Defendant, **THE CITY OF NEW YORK**.
4. That at all times hereinafter mentioned, Defendant, **P.O. "JANE DOE" #2**, was
employed by Defendant, **THE CITY OF NEW YORK**.
5. That at all times hereinafter mentioned, Defendant, **P.O. "JOHN DOE" #1**, was

employed by The New York City Police Department.

6. That at all times hereinafter mentioned, Defendant, **P.O. "JANE DOE" #2**, was employed by The New York Police Department..

7. That by Order, dated October 12, 2015, of the Bronx County Supreme Court (Danziger J.) the Plaintiff's Order to Show Cause seeking leave to file a late notice of claim was deemed timely served *nunc pro tunc* upon the Comptroller of the City of New York and Corporation Counsel of the City of New York.

8. That on October 16, 2015, Plaintiff served an Order to Show Cause (Motion to File Late Notice of Claim) containing a duly executed Notice of Claim to the Office of the Comptroller of the City of New York, located at 1 Center Street, New York, NY 10007.

9. That on October 16, 2015, Plaintiff served an Order to Show Cause (Motion to File Late Notice of Claim) containing a duly executed Notice of Claim to the Corporation Counsel of the City of New York, located at 100 Church Street, New York, NY 10038.

10. That Defendant, **THE CITY OF NEW YORK**, has neglected and/or refused to make adjustments or payment pursuant to Plaintiff's claim and that less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

11. That at all times hereinafter mentioned, Defendant **P.O. "JOHN DOE" #1**, was a member of The New York City Police Department and acting within the scope of his employment.

12. That at all times hereinafter mentioned, Defendant **P.O. "JANE DOE" #2**, was a member of The New York City Police Department and acting within the scope of her employment.

13. That on or about June 15, 2015, at approximately 4:00 A.M., Defendants **P.O.**

“JOHN DOE” #1 and **P.O. “JANE DOE” #2** came to be present at 2471 Grand Avenue in the County of the Bronx, City and State of New York, during the normal course of their employment with Defendant, **THE CITY OF NEW YORK** and/or The New York City Police Department.

14. That on or about June 15, 2015, at approximately 4:00 A.M., Plaintiff **MANUEL ZAYAS** was lawfully present at 2471 Grand Avenue in the County of Bronx, City and State of New York.

15. That on or about June 15, 2015, at approximately 4:00 A.M., as a result of the wrongful, willful, reckless, careless and negligent acts of Defendants herein, their agents, servants and/or employees, Plaintiff **MANUEL ZAYAS** sustained severe and permanent personal injuries.

16. That the foregoing occurred solely and wholly as a result of the negligence of Defendants herein, their agents, servants and/or employees, and without any negligence of the part of Plaintiff **MANUEL ZAYAS** contributing thereto.

17. That Defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing Plaintiff **MANUEL ZAYAS** to be subjected to assault and battery, traumatized, pushed, shoved, tackled, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force, in negligently and carelessly failing to adequately train police officers and/or other personnel for the public’s safety, including Plaintiff **MANUEL ZAYAS**; in

denying prompt and necessary medical attention; and in being otherwise careless and negligent.

18. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 18 of the complaint herein with the same force and effect as if set forth herein at length.

20. That Defendants, "**JOHN DOE**" #1 and P.O. "**JANE DOE**" #2, acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff **MANUEL ZAYAS**, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

21. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will

continue for a long time to come, all to his damage, in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 21 of the complaint herein with the same force and effect as if set forth herein at length.

23. That Defendants, **"JOHN DOE" #1** and **P.O. "JANE DOE" #2**, acting under the color of authority and without provocation, viciously and maliciously falsely arrested the plaintiff, wrongfully depriving plaintiff of his liberty.

24. That Plaintiff **MANUEL ZAYAS** was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

25. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 25 of the complaint herein with the same force and effect as if set forth

herein at length.

27. That Defendants, **P. O. "JOHN DOE" #1** and **P.O. "JANE DOE" #2**, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned Plaintiff **MANUEL ZAYAS** , for approximately two (2) hours, wrongfully depriving him of his liberty.

28. That Plaintiff **MANUEL ZAYAS** was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

29. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 29 of the complaint herein with the same force and effect as if set forth herein at length.

31. That Defendant, **THE CITY OF NEW YORK**, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff **MANUEL ZAYAS**, wrongfully depriving him of his liberty and due process of law.

32. That Defendant, **THE CITY OF NEW YORK**, acting under the color of authority

and without provocation, viciously and maliciously, falsely compelled Plaintiff **MANUEL ZAYAS** to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

33. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 33 of the complaint herein with the same force and effect as if set forth herein at length.

35. That the aforementioned acts of Defendants, under color of law and under color of their authority as employees, agents and/or servants of **THE CITY OF NEW YORK** violated Plaintiff **MANUEL ZAYAS**'s property and liberty interests guaranteed to him as a citizen of the United States under the Fourth Amendment to the United States Constitution as incorporated by the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983 and the Human Rights Laws of the City of New York.

36. That the aforementioned acts of Defendants, under color of law and under color of their authority as employees, agents and/or servants of **THE CITY OF NEW YORK** violated

Plaintiff **MANUEL ZAYAS**'s property and liberty interests guaranteed him as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

37. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 37 of the complaint herein with the same force and effect as if set forth herein at length.

39. That the aforementioned acts of Defendants, under color of law and under color of their authority as employees, agents and/or servants of **THE CITY OF NEW YORK** violated Plaintiff **MANUEL ZAYAS**'s right to equal protection under the law guaranteed to him as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

40. That the aforementioned acts of Defendants, under color of law and under color of their authority as employees, agents and/or servants of **THE CITY OF NEW YORK** violated Plaintiff **MANUEL ZAYAS**'s right to equal protection under the law guaranteed to him as a resident of the State of New York under Article 1, Section 11 of the Constitution of the State of New York.

41. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick,

sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 41 of the complaint herein with the same force and effect as if set forth herein at length.

43. That by reason of the foregoing acts and/or omissions of Defendants in violation of the Fourteenth Amendment to the United States Constitution, Plaintiff **MANUEL ZAYAS** has been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.

44. That pursuant to 42 U.S.C. § 1983, Plaintiff **MANUEL ZAYAS** is entitled to reasonable attorney's fees as part of costs.

AS AND FOR A NINTH CAUSE OF ACTION

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 44 of the complaint herein with the same force and effect as if set forth herein at length.

46. That at all times hereinafter mentioned, Defendants, without cause or justification, did intentionally inflict emotional distress upon Plaintiff **MANUEL ZAYAS**, causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

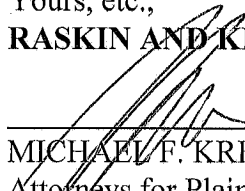
47. That at all times herein after mentioned, Defendants, without cause or justification, did negligently inflict emotional distress upon Plaintiff **MANUEL ZAYAS**, causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

48. That by reason of the foregoing, Plaintiff **MANUEL ZAYAS** became sick, sore, lame and disabled; Plaintiff **MANUEL ZAYAS** has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff **MANUEL ZAYAS** will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff **MANUEL ZAYAS** was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in the sum which exceeds the jurisdictional limits of all lower courts.

49. **WHEREFORE**, Plaintiff, **MANUEL ZAYAS**, demand judgement against Defendants, **THE CITY OF NEW YORK, P.O. "JOHN DOE" #1** and **P.O. "JANE DOE" #2**, in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated : New York, New York
April 12, 2016

Yours, etc.,
RASKIN AND KREMINs, L.L.P.



MICHAEL F. KREMINs, ESQ.
Attorneys for Plaintiff
MANUEL ZAYAS
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
)SS.:
COUNTY OF NEW YORK)

MICHAEL F. KREMINS, affirms under the penalties of perjury the following:

I am a member of the firm of **RASKIN & KREMINS, L.L.P.**, attorneys for plaintiff(s) herein.

That I have read and know the contents of the foregoing **COMPLAINT**, that the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters he believes it to be true.

That the reason why this verification is made by your affirmant instead of by the Plaintiff is that the Plaintiff is not within the County of New York, which is the County where your affirmant has his office. Your affirmant further says that the grounds of the belief as to all matters in the said **COMPLAINT** are statements of said Plaintiff, papers and records in his possession, and a general investigation of the facts of this case.

Dated: New York, New York
April 12, 2016



MICHAEL F. KREMINS, ESQ.

INDEX NO.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MANUEL ZAYAS,

Petitioner,

-against-

THE CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT, P.O. "JOHN DOE" #1 and P.O. JANE DOE #2,

Respondents.

SUMMONS & VERIFIED COMPLAINT

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
within named Court on , 2000.

NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon.
the judges of within named Court, at , on

Dated: New York, New York

Yours, etc.,

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff
160 Broadway-4th Floor
New York, NY 10038
(212) 587-3434